

- **Parliament** (legislative organ of the Union Government) consists of the **President, the Lok Sabha (Lower House), and the Rajya Sabha (Upper House)**. [UPSC 2012]
- **Articles 79 to 122 in Part V** of the Constitution deal with the organisation, composition, duration, officers, procedures, privileges, powers and so on of the Parliament.
- **Hindi** names **Rajya Sabha** and **Lok Sabha** were adopted in 1954.
- The Rajya Sabha represents the states and union territories of the Indian Union, while the Lok Sabha represents the people of India as a whole.

IMPORTANT PROVISIONS

President: Not a member of either house but an **integral part of the Parliament**. Unlike Britain and India, the American president is not an integral part of the legislature.

- **Summons and Prorogues** both the Houses, **dissolves the LS, addresses** both the Houses, issues ordinances when **they are not in session**, and so on. Can dissolve LS before completion of 5 years and this cannot be challenged in any court of law.

LOK SABHA VS. RAJYA SABHA

Feature	Rajya Sabha	Lok Sabha
Maximum Strength	250 total: 238 (elected from States & UTs) + 12 (nominated by the President)	550 total: 530 (elected from States) + 20 (elected from UTs)
Present Strength	245 total: 225 (from States) + 8 (from UTs) + 12 (nominated)	543 total: 524 (from States) + 19 (from UTs)
Anglo-Indian Nomination	N/A	2 Anglo-Indians to be nominated by the President (Article 331) has been discontinued by the 104th CAA, 2019 ; no Anglo-Indian members in the 17th Lok Sabha.
Seat Allocation	Defined in the 4th Schedule; representation only for Delhi, Puducherry, and J&K	N/A
State Representation	Elected by MLAs through proportional representation via single transferable vote	Directly elected from territorial constituencies using universal adult franchise (First-past-the-post system)
UT Representation	Indirectly elected by members of a specially constituted electoral college	Directly elected as per the Union Territories (Direct Election to the House of the People) Act, 1965 [UPSC 2012]
Term	Continuing chamber; one-third of members retire every two years; each member serves a 6-year term	Not a continuing chamber; normal term is 5 years from the date of the first meeting post-elections; automatically dissolves afterward.
Emergency Extension	N/A	Can extend for one year during a National Emergency (Article 352), but cannot exceed six months after the emergency ends.
Nominations	12 members nominated by the President, having special knowledge or experience in literature, science, art, and social service (Article 80(3))	N/A

Qualifications (Constitution)	• Citizenship of India Oath or affirmation (Schedule 3) • Age: 30 years (RS) • Other qualifications as prescribed by Parliament	• Citizenship of India [UPSC 2017] • Oath or affirmation (Schedule 3) • Age: 25 years (LS) • Other qualifications as prescribed by Parliament
Qualification (RPA, 1951)	Must be registered as an elector for a Parliamentary constituency; Must be a member of SC/ST community for reserved seats. [UPSC 2018]	Must be registered as an elector for a Parliamentary constituency [UPSC 2017] Must be a member of SC/ST community for reserved seats
Disqualification (Constitution)	• Holds office of profit • Not a citizen of India • Unsound mind (court-declared) • Undischarged insolvent • Acquired foreign citizenship	• Holds office of profit • Not a citizen of India • Unsound mind (court-declared) • Undischarged insolvent • Acquired foreign citizenship
Disqualification (RPA, 1951)	• Guilty of election offences • Failed to lodge election expenses • Interest in government contracts • Managing agent, manager, or secretary in a corporation with 25% government share (Sec.10 RPA 1951). [UPSC 2020] • Convicted for promoting enmity • Punished for social crimes • Dismissed for corruption.	• Guilty of election offences • Failed to lodge election expenses • Interest in government contracts • Managing agent, manager, or secretary in a corporation with 25% government share (Sec.10 RPA 1951). • Convicted for promoting enmity • Punished for social crimes • Dismissed for corruption
Disqualification (Defection)	Decided by the Chairman; judicially reviewable (Kihoto Hollohan Judgement 1992) Grounds include: Voluntarily leaving the party, voting contrary to party direction, etc.	Decided by the Speaker; judicially reviewable (Kihoto Hollohan Judgement 1992) Grounds include: Voluntarily leaving the party, voting contrary to party direction, etc.
Vacating of Seats	• No double membership in both Houses • Must inform within 10 days if elected to both • Members elected to another House vacate their first House seat	• No double membership with state legislature; if not resigning within 14 days, Parliament seat becomes vacant • Seat vacated if subject to disqualification or if election declared void
Oath/Affirmation	Administered by the President; cannot vote or participate until subscribed	Administered by the President; cannot vote or participate until subscribed
Penalties	Liable to a penalty of Rs. 500 for each day seated or voting without qualification	Liable to a penalty of Rs. 500 for each day seated or voting without qualification
Salaries and Allowances	Determined by Parliament; no pension provision in Constitution; pensions provided in 1976	Determined by Parliament; no pension provision in Constitution; pensions provided in 1976

Office of Profit

- **Definition:** An **office of profit** is any position that offers a salary, benefits, or financial gain. This concept prevents legislators (MPs and MLAs) from holding roles that could create conflicts of interest.
- **Exemption from the Law:** No limit exists on the number of offices exempted from disqualification. The **Supreme Court** upheld the **Parliament (Prevention of Disqualification) Amendment Act, 2006**, which exempted 55 offices held by Members of Parliament, ruling it constitutionally valid.
- **Legislative Framework:** The **Parliament (Prevention of Disqualification) Act, 1959** has been amended five times to expand the list of exempted offices.
- **Constitutional References:** The term '**office of profit**' appears in **Articles 102(1)(a)** and **191(1)(a)** of the Constitution but is not defined in the **Indian Constitution** or the **Representation of the People Act, 1951**. These articles bar legislators from holding offices of profit under the **Central or State Government** to prevent financial gain. [UPSC 2019]

System of Elections to Lok Sabha

- **Constituencies:** Each state is divided into **territorial constituencies** for Lok Sabha elections, ensuring uniformity of representation at two levels representation:
 - The ratio between number of seats and population is same for all
 - **Intra-State:** Equal representation among constituencies within the same state.
 - **Reservation:**
 - **Scheduled Castes (SC)** and **Scheduled Tribes (ST)** are allocated reserved seats based on **population ratios**.
 - All voters in a constituency elect reserved seats without a separate electorate.
 - Members of SC and ST can contest **general (non-reserved)** seats.
 - **Seat Allocation:**
 - The **42nd Amendment Act of 1976** froze Lok Sabha seat allocation and territorial constituency division until **2000** at 1971 levels.
 - The **84th Amendment Act of 2001** extended this freeze for another **25 years** (up to **2026**) to promote **population control measures**.
 - **Voting Age:** The **61st Constitutional Amendment Act of 1988** reduced the voting age from **21 to 18 years**.
- 104th CAA, 2019:** Extends **reservation** for **Scheduled Castes (SC)** and **Scheduled Tribes (ST)** in **Lok Sabha** and **legislative bodies** until **January 25, 2030** (Articles 330 and 332).
- Discontinues the nomination of **Anglo-Indians** (Article 331) to Lok Sabha (2 members) and legislative bodies (1 member).

PRESIDING OFFICERS OF THE PARLIAMENT

Each House of Parliament has its own presiding officer. The Lok Sabha has a Speaker and a Deputy Speaker, while the Rajya Sabha has a Chairman and a Deputy Chairman. Additionally, a panel of chairpersons is appointed for the Lok Sabha, and a panel of vice-chairpersons is appointed for the Rajya Sabha.

Historical Background

- **Origins:** The institution dates back to the Government of India Act, 1919.
- **Pre-1921:** Meetings of the Central Legislative Council were presided over by Governor General of India
- **1921:** First Speaker: Frederick Whyte, First Deputy Speaker: Scachidanad Sinha **[UPSC 2024]**
- **1925:** Vithalbhai J. Patel became the first Indian and elected Speaker of the Central Legislative Assembly.
- **1935 Act:** Renamed the President and Deputy President to Speaker and Deputy Speaker respectively.
- **Post-Independence:** First Speaker of Lok Sabha: G.V. Mavalankar, First Deputy Speaker of Lok Sabha: Ananthasayanam Ayyangar.

Speaker Pro-Tem

- The **last Lok Sabha Speaker** vacates their office just before the first meeting of the newly elected Lok Sabha.
- The **Speaker Pro-Tem** is a **temporary office** that helps transition from the old Lok Sabha to the new one, facilitating the election of the new Speaker.
- The **President** appoints the Speaker Pro-Tem, who also administers the **oath** to members; typically, the **senior-most** member is selected.

Feature	Speaker of the Lok Sabha	Chairman of the Rajya Sabha
Position	Elected by the Lok Sabha from among its members	Vice-President of India, ex-officio
Election	Elected whenever the office falls vacant; election date fixed by the President	Not elected; serves as long as Vice-President is in office
Tenure	Remains in office during the life of the Lok Sabha; must vacate if: Ceases to be a member. Resigns to the Deputy Speaker. [UPSC 2012/18]	Does not vacate unless removed as Vice-President (Art. 67)
Removal	Can be removed by a resolution passed by a majority of all the then members of Lok Sabha; requires 14 days' notice and support of at least 50 members [UPSC 2024]	Can only be removed if the Vice-President is removed; may participate in proceedings as a member without voting rights
Voting Rights	Does not vote in the first instance but can exercise a casting vote in case of a tie	Similar to the Speaker; does not vote in the first instance but can cast a vote in case of a tie

Powers and Duties	- Derives powers from the Constitution, Rules of Procedure, and Parliamentary Conventions - Guardian of House privileges - Maintains order and decorum - Final interpreter of provisions of the Constitution and Rules - Adjourns the House or suspends meetings for lack of quorum (one-tenth of total strength) - Decides if a bill is a money bill (decision is final) - Presides over joint sittings (Art. 108) - Allows secret sittings at the request of the Leader of the House - Decides disqualifications arising from defection (subject to judicial review) - Appoints chairpersons of parliamentary committees and supervises their functions - Ex-officio chairman of various committees Exclusive Powers of Rajya Sabha Chairman Similar powers to the Speaker, except: - Cannot decide if a bill is a money bill (that power lies with the Speaker) - Does not preside over joint sittings of Parliament (that is the Speaker's role) - Acts as a link between the Rajya Sabha and the President of India	
Independence & Impartiality	Security of tenure, Salaries and allowances fixed by Parliament, charged on the Consolidated Fund of India. Work cannot be discussed or criticised in Lok Sabha except on a substantive motion. Powers of regulating procedure and maintaining order are not subject to court jurisdiction. Can only exercise a casting vote	- Salary and allowances fixed by Parliament, charged on the Consolidated Fund of India - Cannot preside over Rajya Sabha when a removal resolution is under consideration; acts as a normal member without voting rights. Must ensure the smooth functioning of the Rajya Sabha
Ranking	Placed at the seventh rank, along with the Chief Justice of India	Not ranked separately; holds position as Vice-President of India
Party Affiliation	Expected to be impartial but not strictly enforced in practice	Expected to be a non-party individual, following British conventions
Quorum for Joint Sitting	Presides over joint sittings of both Houses; requires a quorum of both Houses	Does not preside over joint sittings; Speaker conducts these sessions
Role in Legislative Process	Plays a crucial role in the legislative process of the Lok Sabha, including managing debates	Plays a supportive role in the legislative process, primarily overseeing the Rajya Sabha

DEPUTY SPEAKER OF LOK SABHA AND DEPUTY CHAIRMAN OF RAJYA SABHA

Criteria	Deputy Speaker of Lok Sabha (Art. 93)	Deputy Chairman of Rajya Sabha
Election	Elected after the election of the Speaker; date fixed by the Speaker. [UPSC 2022]	Elected by the Rajya Sabha from among its members; vacancy filled similarly.
Affiliation	Since the 11th Lok Sabha: consensus that the Speaker belongs to ruling party or alliance and Deputy Speaker main opposition party. [UPSC 2022, 2017]	Elected from among Rajya Sabha members; no specific affiliation.
Vacancy Procedure	Lok Sabha elects another member to fill the Deputy Speaker vacancy.	Rajya Sabha elects another member to fill the Deputy Chairman vacancy.
Presiding Duties	Presides over joint sittings (Art. 108) in the Speaker's absence.	Performs duties of the Chairman when the office is vacant or when the Vice-President acts as President.
Committee Membership	Automatically becomes chairman of a parliamentary committee if a member.	No automatic chairmanship upon membership in a committee.

Resignation Submission	Resignation submitted to the Speaker of Lok Sabha.	Resignation submitted to the Chairman (Vice-President) of Rajya Sabha.
Voting Rights (while presiding)	Cannot vote in the first instance, only has a casting vote.	Same as Deputy Speaker; cannot vote in the first instance, only has a casting vote.
Salary and Allowance	Fixed by Parliament; charged on the Consolidated Fund of India.	Fixed by Parliament; charged on the Consolidated Fund of India.
Removal Procedure	Similar to Speaker's removal (Art. 94); cannot preside during removal consideration.	Removal as per Article 90; cannot preside during removal consideration.
Panel of Chairpersons/ Vice-Chairpersons	Nominated by Speaker from among LS members; presides in absence of Speaker and Deputy Speaker.	Nominated by Chairperson from among RS members; presides in absence of Chairman and Deputy Chairman.
Presiding in Vacant Seats	If both Speaker and Deputy Speaker are vacant, a member appointed by President presides.	If both Chairman & Deputy Chairman seats are vacant, the President appoints a member from the House.

Indian Speaker	British Speaker
• Elected from among the members of the Lok Sabha after a new assembly is formed. • Expected to be impartial, but retains membership in their political party. • Continues in office even if the Lok Sabha is dissolved until a new Lok Sabha is formed. • Has extensive powers to conduct the business of the House, including disciplinary actions. • Can return to active party politics after their tenure as Speaker.	• Elected from among the members of the House of Commons, often unopposed in subsequent elections. • Required to be completely impartial and resign from their political party upon election. • Remains in office regardless of changes in government or general elections, until resignation or retirement. • Holds significant authority over the conduct of business in the House and maintains order. • Traditionally steps down from the House of Commons and is often elevated to the House of Lords. The constituency of the Speaker is also kept uncontested as a form of convention by parties.

SECRETARIAT OF PARLIAMENT ARTICLE 98

- **Separate Staff:** Each House has its own secretarial staff, with some common posts.
- **Regulated Recruitment:** Staff recruitment and service conditions are determined by Parliament.
- **Headed by Secretary-General:** Each House is led by a **Secretary-General**, a permanent officer appointed by the Presiding officer.

LEADERS IN PARLIAMENT

- **Leader of the House:**
 - In **Lok Sabha**: Typically the **Prime Minister** or a nominated minister.
 - In **Rajya Sabha**: A minister nominated by the Prime Minister; may have a deputy leader.
 - Comparable to the **majority leader** in the USA.
- **Leader of the Opposition:**
 - Recognized since **1969**; statutory acknowledgment in **1977**. [UPSC 2018]
 - In order to receive the status of opposition party and Consequent Leader of Opposition Tag a party should secure 10% of the total strength of the House i.e., 55 seats in the Lok Sabha

- Holds a status equivalent to a **cabinet minister**, receiving similar salary and benefits.
- Ivor Jennings referred to this position as “**Alternative Prime Minister**”; similar to the **minority leader** in the USA.

Whip

- **Definition:** Not explicitly mentioned in the Constitution; based on parliamentary conventions.
- **Roles:**
 - Each political party has a **Chief Whip** and whips to ensure attendance and party alignment during votes.
 - Members must adhere to the whip's directives, with potential disciplinary actions for non-compliance.
 - In **Lok Sabha**, the Chief Whip is the **Minister of Parliamentary Affairs**; in **Rajya Sabha**, it is the **Minister of State for Parliamentary Affairs**.
- **Types of Whips:**
 - **One-Line Whip:** Notifies members of a vote without instructions on how to vote.
 - **Two-Line Whip:** Directs members to attend voting, without specific voting instructions.
 - **Three-Line Whip:** Instructs members to vote according to the party line.

Recognized Parties and Groups

- A **recognized party** requires **55 members** in the Lok Sabha or **25 members** in the Rajya Sabha.
- A **recognized group** requires **30 members** in the Lok Sabha or **15 members** in the Rajya Sabha.
- Each party's Chief Whip provides voting instructions during parliamentary votes.

IMPORTANT CONCEPTS RELATED TO PARLIAMENT

Summoning (Article 85)

- The **President** summons each House of Parliament periodically or at a suitable location.
- Each House must meet at least **twice a year**. The gap between two sessions must not exceed 6 months. There is no provision of the minimum number of days that the Parliament is required to meet in a year. [UPSC 2020]

Sessions

- A **session** is the period between the first sitting and prorogation (or dissolution for Lok Sabha).
- Typically, there are **three sessions** annually:
 - **Budget Session:** February to May
 - **Monsoon Session:** July to September
 - **Winter Session:** November to December [UPSC 2020]

Recess and Adjournment

- **Recess:** Duration between prorogation and reassembly.
- **Adjournment:** The Presiding Officer can terminate a sitting temporarily, which can be for hours, days, or weeks. Pending business is resumed when the House reconvenes.
 - A sitting consists of two meetings: morning (11 am to 1 pm) and post-lunch (2 to 6 pm).

Adjournment Sine Die

- Means indefinite termination of a sitting by the Presiding Officer.
- Pending bills and business remain unaffected.

Prorogation

- **Prorogation** is notified by the President and can also occur while the House is in session.
- It terminates both the sitting and session but does not affect pending business except for notices (other than introducing bills) which lapse. [UPSC 2024]

Dissolution

- Only the Lok Sabha can be dissolved, ending its current life irrevocably.
- Dissolution may occur:
 - Automatically at the end of its tenure.
 - By the President's decision.

- All pending business lapses upon dissolution, except some bills and pending assurances for the Committee on Government Assurances. [UPSC 2024]

Lame Duck Session

- The last session of the outgoing Lok Sabha after a new Lok Sabha has been elected. Members who are not re-elected are termed **lame ducks**.

Quorum

- Minimum members required: **one-tenth** of total members (including the Presiding Officer).
- In the absence of a quorum, the Presiding Officer must adjourn or suspend the meeting.

Language in Parliament

- **Hindi and English** are designated for Parliamentary business. Members may use their mother tongue with the Presiding Officer's permission.
- The **Official Languages Act (1963)** allows English to continue alongside Hindi post-15 years from the Constitution's commencement.

Rights of Ministers and Attorney General

- Every **minister** and the **Attorney General** can speak and participate in both Houses and committees without a vote.

Voting in the House

- Decisions are made by a **majority** of members present and voting, excluding the Presiding Officer.
- Specific matters, like **impeachment** and constitutional amendments, require an effective majority or **special majority**.
- Proceedings are valid despite unauthorised voting or vacancies.

Methods of Voting

- Includes **Voice Vote, Secret Ballot, Recording of Votes by Slips, Physical Count, and Casting Vote**.

Position of Bills Regarding Lapsing

- **Bill Lapses:** [UPSC 2016]
 - If pending in Lok Sabha.
 - If pending in Rajya Sabha but passed by Lok Sabha.
- **Bill Does Not Lapse:**
 - If passed by both Houses but returned by the President.
 - If pending in Rajya Sabha and not passed by Lok Sabha. [UPSC 2016]
 - If a joint sitting is notified before Lok Sabha dissolution.
 - If passed by both Houses but awaiting the President's assent.

DEVICES OF PARLIAMENTARY PROCEEDINGS

Question Hour

The **first hour** of parliamentary sitting was dedicated to members asking questions, with ministers providing answers. Established by the **Indian Council Act of 1892**.

- **Types of Questions:**
 - **Starred Question:** Requires an **oral answer**; supplementary questions allowed.
 - **Unstarred Question:** Requires a **written answer**; no supplementary questions allowed.
 - **Short Notice Question:** Answered orally on **less than 10 days** notice.
- **Question types are colour-coded:**
 - **Starred:** Green
 - **Unstarred:** White
 - **Short Notice:** Light Pink
 - **Private Members:** Yellow

Zero Hour

An **informal device** for members to raise urgent public issues immediately after Question Hour until the day's agenda starts. Introduced in **1962**. Not mentioned in Rules of Procedure.

Motions

Discussions on public matters require a **motion** with the Presiding Officer's consent.

- **Categories of Motions:**
 - **Substantive Motion:** Independent proposal on significant matters.
 - **Substitute Motion:** Proposes an alternative to replace the original motion.
 - **Subsidiary Motion:** Lacks meaning alone and relates to the original motion; includes:
 - ◆ **Ancillary Motion:** Regularly used to proceed with business.
 - ◆ **Superseding Motion:** Seeks to replace another issue during a debate.
 - ◆ **Amendment:** Modifies part of the original motion.

Closure Motion

- A member moves this to **cut short** the debate. If approved, the matter is put to a vote.
- **Types of Closure Motions:**
 - **Simple Closure:** Enough discussion has occurred; put to vote.
 - **Closure by Compartments:** Groups clauses for debate and voting.
 - **Kangaroo Closure:** Important clauses debated; others skipped.
 - **Guillotine Closure:** Undiscussed clauses voted along with discussed ones due to time constraints.

Privilege Motion

- Raised when a member believes a minister has breached the **privileges** of the House by withholding or distorting facts, aimed at censuring the minister.

Calling Attention Motion

- Moved to alert a minister about urgent public matters; an **Indian innovation** since **1954**.

Adjournment Motion

- Draws attention to urgent public matters, interrupting normal House business. Not allowed in **Rajya Sabha** as it involves censure.
- It allows a discussion on a definite matter of urgent public importance. **[UPSC 2012]**
- Discussion lasts for at least **2 hours and 30 minutes**.
- **Criteria:**
 - Covers only one recent matter.
 - Cannot be general or previously discussed.
 - Cannot address court-adjudicated matters.
 - Requires support from **50 members**.

Confidence Motion

- A procedural tool for addressing **fractured mandates** and government stability.
- The **President** may request a demonstration of majority in the House, or governments may voluntarily propose it.
- If a confidence motion fails, it results in the **collapse** of the government.

No-Confidence Motion

- **Article 75:** Establishes that the Council of Ministers (CoM) is **collectively responsible** to the Lok Sabha, a principle central to Parliamentary democracy. **[UPSC 2014]**
- Not explicitly mentioned in the Constitution; moved under **Rule 198** of the Rules of Procedure.
- Can only be introduced in the **Lok Sabha** and requires support from **50 members** without needing to state reasons for its adoption.
- Targets the **entire** Council of Ministers, not individual ministers. If passed, the CoM must **resign**.

Censure Motion

- Moved to express **disapproval** of certain government policies.
- Requires reasons for adoption.
- Can be directed against an **individual minister**, a group of ministers, or the entire CoM.
- If passed in the Lok Sabha, the CoM does **not** need to resign.

Motion of Thanks

- Addressed by the **President** during the first session after each general election and every fiscal year, outlining government policies.
- Discussed in both Houses of Parliament and must be passed; failure to pass amounts to a **defeat** of the government.

No-Day-Yet-Named Motion

- A motion that has been **admitted** by the Speaker but lacks a scheduled date for discussion.



Dilatory Motion

- A motion seeking the **adjournment** of debate on a bill/motion/resolution.
- Can be moved anytime after a motion is made, but debate is restricted to the motion's content.
- If deemed an **abuse of rules**, the Speaker may decline or proceed with a vote.

Point of Order

- Raised when parliamentary proceedings deviate from normal rules, typically by the **Opposition**.
- Concerns interpretation/enforcement of the **Rules of the House** or relevant Constitutional articles.
- An extraordinary device that **suspends** proceedings; debate is not allowed.

Half-an-Hour Discussion

- Intended for discussing matters of **public importance**.
- The Speaker can allocate **three days a week** for such discussions.
- No formal motion or voting occurs.

Short Duration Discussion

- Also known as a **two-hour discussion**; time limit is **two hours**.
- Speakers can allocate **two days a week** for such discussions; no formal motion or voting required. Established in 1953.

Special Mention

- Used to raise matters that do not fit other parliamentary categories.
- In the **Rajya Sabha**, this falls under special mention; in the **Lok Sabha**, it is termed "Notice (Mention) Under Rule 377".

Resolutions

- A **self-contained independent proposal** for House approval, expressing decisions on public interest matters.
- Members moving resolutions cannot withdraw without House **permission**.
- All resolutions are substantive motions, while not all motions require a vote.

Types of Resolutions

- **Private Member's Resolution:** Moved by private members, discussed on alternate Fridays during afternoon sittings.
- **Government Resolution:** Moved by a minister.
- **Statutory Resolution:** Can be moved by either a private member or a minister; arises from provisions in the Constitution or an Act of Parliament.

Youth Parliament

- Initiated based on recommendations from the **Fourth All India Whips Conference** to educate younger generations about parliamentary practices and democratic values.
- The Ministry of Parliamentary Affairs supports training and implementation in states.

LEGISLATIVE PROCEDURE IN PARLIAMENT

- The legislative procedure is **identical** in both Houses of Parliament.
- Every **bill** must pass through the same stages in each House.
- A bill is a proposal for legislation that becomes an **act** or **law** upon enactment.

TYPES OF BILLS

Based on Introduction

1. Public Bill

- Introduced in Parliament by a **minister**.
- Reflects the **policies of the government** (ruling party).
- Greater chance of approval; rejection indicates a lack of **parliamentary confidence** in the government, potentially leading to its resignation.
- Requires **seven days' notice** for introduction.

2. Private Bill

- Introduced by any **member of Parliament** other than a minister. [UPSC 2017]
- Lesser chance of approval; rejection does not affect the government's confidence or lead to its resignation.
- Requires **one month's notice** for introduction.

Based on Procedure Required for Passage

1. **Ordinary Bill:** Deals with any matter other than **financial subjects**.
2. **Money Bill (Article 110):** Concerns **financial matters** such as taxation and public expenditure. Special procedures for passage, including limitations on the Rajya Sabha's power to amend or reject.
3. **Financial Bill (Article 117):** Related to financial matters but distinct from Money Bills. All Money Bills are Financial Bills, but not all Financial Bills qualify as Money Bills. [UPSC 2023]
4. **Constitutional Amendment Bill:** Pertains to amendments of provisions in the **Constitution** (Article 368). There is **no provision** for a joint sitting in the case of a Constitutional Amendment.

Ordinary Bill

- **Introduction:** Can be introduced in either the **Lok Sabha** or the **Rajya Sabha** by a minister or a private member, without the President's recommendation.
- **Rajya Sabha Actions:** Can amend or reject the bill. It can be detained for a maximum of **six months**. The bill does not require the Speaker's certification when transmitted to the Rajya Sabha (if it originated in the Lok Sabha).
- **Deadlock Resolution:** In case of disagreement, a joint sitting can be summoned by the President. Defeat in Lok Sabha (if introduced by a minister) may lead to government resignation. The bill can be rejected, approved, or returned by the President.

Stages of Enactment of an Ordinary Bill

1. First Reading

- Introduction of the bill and its publication in the **Gazette**.
- No discussion occurs; members must ask for leave of the House for introduction.
- If published before introduction, leave is not required.

2. Second Reading

- Involves general and detailed scrutiny, shaping the final form of the bill.
- **Sub-Stages:**
 - ◆ **Stage of General Discussion:** General principles discussed; may be referred to a committee or elicited for public opinion.
 - ◆ **Committee Stage:** Clause-by-clause examination; amendments can be made without altering core principles. The committee reports back to the House.
 - ◆ **Consideration Stage:** Detailed discussion and voting on each clause. Amendments can be proposed and accepted.

3. Third Reading

- Debate focuses on acceptance or rejection of the entire bill; no amendments allowed.
- If passed by a majority of members present, it is authenticated by the presiding officer and sent to the second House.

Bill in the Second House

- The bill goes through the same three stages: first reading, second reading, and third reading.
- Four options for the second House:
 - Pass the bill as received (without amendments).
 - Pass the bill with amendments and return it to the first House.
 - Reject the bill.
 - Take no action, keeping the bill pending.

[UPSC 2015, 2024]
- If passed without amendments or accepted amendments are approved by both Houses, it is sent to the President.
- If there is rejection, or no action taken for six months, a deadlock occurs.
- The President can summon a joint sitting to resolve the deadlock. If approved by majority in the joint sitting, it is deemed passed by both Houses.

Assent of President

- If the President gives assent, the bill becomes an **act** and is placed on the **Statute Book**.
- If the President withholds assent, the bill ends. If returned for reconsideration and passed again by both Houses, the President must give assent.

MONEY BILLS

A bill is classified as a **Money Bill** if it includes provisions exclusively related to the following matters:

- **Taxation:** Imposition, abolition, remission, alteration, or regulation of any tax.
- **Borrowing:** Regulation of borrowing by the Union government.
- **Funds Management:**
 - Custody of the **Consolidated Fund of India** or the **Contingency Fund of India**.
 - Payment into or withdrawal from these funds.
 - Appropriation of money from the Consolidated Fund.
- **Expenditure:** Declaration of any expenditure charged on the Consolidated Fund or increasing such expenditure.
- **Receipts:** Receipt of money related to the Consolidated Fund or public accounts, custody or issue of such money, or audit of accounts.
- **Incidental Matters:** Any matter incidental to the above points.

[UPSC 2018, 2019, 2024]

Note: A bill is not considered a Money Bill merely because it includes provisions related to fines, fees for licences, or local taxes imposed by local authorities.

Legislative Procedure for Money Bill

- **Introduction:**
 - Can only be introduced in the **Lok Sabha**, not in the **Rajya Sabha**.
 - Must be introduced by a **minister** and is considered a **government bill**.
 - Requires the recommendation of the **President** for introduction.
- **Rajya Sabha Actions:**
 - The **Rajya Sabha** cannot amend or reject a Money Bill.

[UPSC 2013]
 - It must return the bill with or without recommendations, which the **Lok Sabha** may choose to accept or reject.

[UPSC 2013]
 - The Rajya Sabha can detain the bill for a maximum of **14 days**.
 - The bill requires the **Speaker's certification** when sent to the Rajya Sabha.
- **President's Assent:**
 - The bill is sent for the President's assent even if approved only by the Lok Sabha.
 - There is no provision for a joint sitting between the two Houses concerning Money Bills, eliminating the possibility of disagreement.

[UPSC 2013]

- **Government Accountability:**
 - Defeat of a Money Bill in the Lok Sabha results in the resignation of the government.
 - The President cannot return the Money Bill for reconsideration; it can only be rejected or approved.

Difference Between Financial Bill (I) and Financial Bill (II)

Financial Bill (I) [Article 117 (1)]	Financial Bill (II) [Article 117 (3)]
• Bill that not only contains exclusive matters of Article 110, but also contains other matters of general legislation. • Can be introduced only in the Lok Sabha. • Introduced only on the recommendation of the President.	• Bill contains provisions involving expenditure from the Consolidated Fund of India, but does not include any of the matters mentioned in Article 110. • Can be introduced in both Houses of Parliament. • Recommendation of the President is not necessary for its introduction but is required at the consideration stage.

JOINT SITTING (ARTICLE 108)

A **joint sitting** is a constitutional mechanism to resolve deadlocks between the two Houses of Parliament regarding the passage of a bill.

Conditions for Joint Sitting: A deadlock is considered to occur under any of the following conditions after a bill has been passed by one House and sent to the other:

1. The bill is rejected by the other House.
2. The Houses have disagreed on the amendments to be made to the bill.
3. More than **six months** have passed since the bill was received by the other House without it being passed.

Summoning a Joint Sitting

- The **President** has the authority to summon both Houses to a joint sitting for deliberation and voting on the bill.
- If a bill is approved by a majority of the total number of members present and voting in the joint sitting, it is deemed passed by both Houses.

Presiding Over a Joint Sitting

- The **Speaker of the Lok Sabha** presides over the joint sitting.
- In the absence of the Speaker, the **Deputy Speaker** presides; if both are absent, the **Deputy Chairman of the Rajya Sabha** takes over. If he/she is also absent, a member chosen by those present will preside.

- The **Chairman of the Rajya Sabha** does not preside as he is not a member of either House.

Quorum and Procedure: The quorum for a joint sitting is **one-tenth** of the total members of both Houses and is governed by the **Rules of Procedure of the Lok Sabha**.

- A joint sitting cannot be summoned if the disputed bill has lapsed due to the dissolution of the Lok Sabha. However, if the Lok Sabha is dissolved after the President notifies the intention to summon a sitting, the joint sitting can still occur.

Historical Instances: The provision for a joint sitting has been invoked only thrice:

- **Dowry Prohibition Bill (1960)**
- **Banking Service Commission (Repeal) Bill (1977)**
- **Prevention of Terrorism Bill (2002)**

Applicability

- The joint sitting is applicable to **ordinary bills** and **financial bills**, but not to **money bills** or **constitutional amendment bills**. [UPSC 2012]
- The bill can be passed by a simple majority of members present and voting. [UPSC 2015]

Amendment Provisions: At a joint sitting, new amendments can only be proposed in two scenarios:

- Those that caused final disagreement between the Houses.
- Those that have become necessary due to delays in the bill's passage.

BUDGET (ARTICLE- 112)

The Constitution refers to the budget as the “**Annual Financial Statement**.” The term “budget” is not explicitly mentioned in the Constitution. It outlines the estimated receipts and expenditures of the Government of India (GoI) for a financial year.

Components of the Budget

The Budget Includes

1. Estimates of **revenue** and **capital receipts**.
2. **Ways and means** to raise revenue.
3. Estimates of **expenditure**.
4. Details of **actual receipts** and **expenditure** from the closing financial year.
5. The **economic and financial policy** for the coming year.

Fiscal Responsibility and Budget Management (FRBM) Act, 2003: The FRBM Act, 2003 mandates the presentation of the **Macro-Economic Framework Statement** to Parliament. This statement assesses **GDP growth**, the **Central Government's fiscal balance**, and the **external sector balance** of the economy. [UPSC 2020]

Historical Context

- Until 2017, the Government of India had two separate budgets: the **Railway Budget** and the **General Budget**.

- The Railway Budget was separated from the General Budget in 1924 following the recommendations of the **Acworth Committee Report (1921)**.

Constitutional Provisions for Budget Enactment

The Constitution includes the following key provisions regarding the budget:

- **Presidential Presentation:** The President presents the estimated receipts and expenditures for the year to both Houses of Parliament (Article 112). [UPSC 2024]
- **Grant Recommendations:** No demand for a grant can be made except on the recommendation of the President (Article 113).
- **Withdrawal from the Consolidated Fund:** No money can be withdrawn from the **Consolidated Fund of India (CFI)** except under law (Article 114).
- **Tax Bills:** No money bill imposing tax can be introduced in Parliament without the President's recommendation, and such a bill cannot be introduced in the Rajya Sabha (Article 117).
- **Authority of Law:** No tax shall be levied or collected except by authority of law (Article 265).
- **Tax Reduction:** Parliament can reduce or abolish a tax but cannot increase it.
- **Demand for Grants:** The Rajya Sabha does not have the power to vote on demands for grants; this is the exclusive privilege of the Lok Sabha (Article 113).
- **Charged Expenditure:** Expenditure charged on the CFI is non-votable but can be discussed in Parliament. This includes:
 - Salaries and allowances of the President, Chairman and Deputy Chairman of Rajya Sabha, Speaker and Deputy Speaker of Lok Sabha, and Judges of the Supreme Court, pensions of High Court Judges.
 - Administrative expenses of the **Supreme Court**, the office of the **Comptroller and Auditor General (CAG)**, and **Union Public Service Commission (UPSC)**.
 - Any sum required to satisfy court judgments, decrees, or awards.
 - Debt charges for which the Government of India is liable.
 - Any other expenditure declared by Parliament to be charged.
- **Lok Sabha Approval:** The Lok Sabha can approve, refuse, or reduce the amount specified in a demand but cannot increase it (Article 113).
- **Amendments to Appropriation Bills:** No amendment can be proposed that varies the amount or alters the destination of any grant voted (Article 114).
- **Vote on Account:** The Lok Sabha can make grants in advance regarding estimated expenditure for part of the financial year, pending the voting of demands for grants and the enactment of the appropriation bill (Article 116).
- **Note:** When the annual Union Budget is not passed by the Lok Sabha, the PM & COM resign. [UPSC 2011]

Stages in the Enactment of Budget



Presentation of the Budget

- The budget is traditionally presented to the **Lok Sabha** by the Finance Minister on the last working day of February. Since 2017, this has been advanced to **February 1**.
- The budget can be presented in two or more parts, each treated as the entire budget.
- There is no discussion on the budget on the day it is presented.

General Discussion

- A general discussion on the budget starts a few days after its presentation and usually lasts for **three to four days** in both Houses of Parliament.
- During this stage, the **Lok Sabha** can discuss the budget as a whole or on any underlying principles, but no cut motions can be moved, and the budget cannot be voted on.
- The Finance Minister has a right to reply at the end of the discussion.

Scrutiny by Departmental Committees

- After the general discussion, both Houses adjourn for about **three to four weeks**.
- The **24 departmental standing committees** examine and discuss the demands for grants in detail and prepare reports.
- These reports are submitted to both Houses for consideration, enhancing parliamentary financial control over ministries.

Voting on Demands for Grants

- Based on the reports of the departmental standing committees, the **Lok Sabha** votes on the demands for grants, presented ministry-wise.
- A demand becomes a grant after being duly voted.
- The Lok Sabha exclusively votes on demands, and the expenditure charged on the **Consolidated Fund of India** is not submitted for a vote.

- Each demand is voted on separately, and members can discuss the budget's details and propose cut motions, which are classified as:

- Policy Cut:** Disapproval of the policy underlying the demand, reducing the amount to ₹1.
- Economy Cut:** Reduction of the demand by a specified amount.
- Token Cut:** Ventilation of a specific grievance, reducing the demand by ₹100.

Conditions for Admissibility of Cut Motions

To be admissible, a cut motion must:

- Pertaining to a single demand.
- Clearly expressed, free from arguments or defamatory statements.
- Focus on one specific matter.
- Not suggest amendments or repeal existing laws.
- Address matters concerning the Union government.
- Not related to expenditure charged on the Consolidated Fund.

- Not concern matters under court adjudication.
- Not raise a question of privilege.

Passing of Appropriation Bill

- The Constitution mandates that no money shall be withdrawn from the **Consolidated Fund of India** except under appropriation made by law.
- After the demands for grants are voted on and passed by the Lok Sabha, an **Appropriation Bill** is introduced to authorise withdrawals from the Consolidated Fund.
- The Appropriation Bill becomes the **Appropriation Act** after receiving Presidential assent, allowing payments from the Consolidated Fund.

Vote on Account

- To address functional difficulties in passing the Appropriation Bill, the Constitution allows the Lok Sabha to make advance grants for estimated expenditure for part of the financial year.
- This provision, known as the '**Vote on Account**,' is generally granted for two months for an amount equivalent to one-sixth of the total estimates, passed after the general discussion.

Comparison between Interim Budget and the Vote on Account

Interim Budget	Vote on Account
- An interim budget is presented by the government in the Parliament if it does not have the time to present a full budget, or if the general elections are approaching. - It will require parliamentary approval for incurring expenditure in the new financial year until a new budget is passed. - Until the Parliament discusses the budget and passes it through the interim budget, the government passes a vote-on-account which will allow the government to meet its expenses of administration. "Interim budget" includes both expenditure and receipts.	- Vote-on-Account is a provision by which the government seeks Parliament's approval for funds that are sufficient to bear the expenditure till the formation of a new government takes place. - A vote-on-account lists only the expenditure borne by the government. It can be passed by the Lok Sabha without discussion. - Vote on Account cannot change the Direct Taxes at any cost. The vote-on-account can be passed through the interim budget. - A "vote-on-account" only deals with the expenditure in the Government's budget. [UPSC 2011]

- Passing of Finance Bill:** The 'Finance Bill' is introduced annually to implement the financial proposals of the Government of India for the next fiscal year, including supplementary proposals for any period.
 - It is treated as a Money Bill and can be subject to amendments related to taxes. During the discussion stage, members can address issues concerning general administration, local grievances, or monetary policies.
 - The Provisional Collection of Taxes Act 1931 mandates the Finance Bill's enactment within **75 days**.
 - The Finance Act finalises the budget process by legalising the income side of the budget.

Comparison Between Different Types of Funds

Consolidated Fund of India Article 266	Public Account of India Article 266	Contingency Fund of India Article 267
All receipts are credited and all payments are debited.	All public money other than those which are credited to the CFI shall be credited here.	Amounts determined by Parliament by law are paid from time to time into this fund.

• All legally authorised payments on behalf of the GoI are made out of this fund. • No money out of this fund can be issued except in accordance with a parliamentary law. [UPSC 2015]	• Includes PF deposits, Judicial deposits, Savings Banks deposits, Departmental deposits, Remittances and so on. • Operated by executive action	• Placed at the disposal of the President, and he can make advances out of it to meet unforeseen expenditure. • Held by the finance secretary on behalf of the president. It is operated by executive action.
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Note: The authorization for the withdrawal of funds from the Consolidated Fund of India must come from **The Parliament of India**. All revenues received by the Union Government by way of taxes and other receipts for the conduct of Government business are credited to the Consolidated Fund of India.

[UPSC 2011]

Parliamentary control over public finance in India by placing Annual Financial Statement before the Parliament, withdrawal of money from Consolidated Fund of India only after passing the Appropriation Bill, Provisions of supplementary grants and vote-on accounts & Introducing the Finance Bill in the Parliament.

[UPSC 2012]

VARIOUS KINDS OF GRANTS

- **Supplementary Grant (Article 115):** Issued when Budgeted funds are insufficient for a particular service for the year.

- **Additional Grant (Article 115):** Allocated for new services, unforeseen at the budget's formulation.
- **Excess Grant (Article 115):** Provided when spending exceeds the budgeted amount, it requires Lok Sabha vote post-financial year and approval by the Public Accounts Committee.
- **Vote of Credit (Article 116):** For unexpected demands, akin to a blank cheque from Lok Sabha to the Executive, due to the service's large scale or indefinite nature.
- **Exceptional Grant (Article 116):** Given for special purposes outside of the regular services of the financial year.
- **Token Grant:** Approved when the expense on a new service is met through reappropriation; entails voting for a token sum (Re 1) to reallocate funds, without additional spending.

Supplementary, additional, excess and exceptional grants and vote of credit are regulated by the same procedure which is applicable in the case of a regular budget.

POSITION OF RAJYA SABHA WITH RESPECT TO LOK SABHA

Equal Status With Lok Sabha	Unequal Status With Lok Sabha	Special Powers to Rajya Sabha
• Ordinary bills. • Constitutional amendment bills. [UPSC 2020, 2013] • Financial bills involving expenditure from the Consolidated Fund of India. • Election and Impeachment of the President. • Recommendation to the President for the removal of Chief Justice and judges of Supreme Court and High courts, CEC and CAG. • Election and removal of the Vice President (RS can alone initiate removal). • Approval of ordinance issued by president • Approval for proclamation of emergencies. • Selection of ministers including the Prime Minister. • Consideration of the reports of the constitutional bodies. • Enlargement of the jurisdiction of the Supreme Court and the UPSC.	• Money bills can be introduced only in LS. RS has no power to amend/reject the Money Bill. [UPSC 2015] • Lok Sabha can either accept or reject all or any of the recommendations of the Rajya Sabha. In both the cases, the money bill is deemed to have been passed by the two Houses. • Final power to decide whether a particular bill is a Money Bill or not is vested in the Speaker of the Lok Sabha. • Financial Bill-I introduced only in LS. • Speaker presides over joint sitting. • RS can only discuss Budget but cannot vote on demand for grants [UPSC 2015] • Resolution for discontinuance of national emergency passed only by LS • No confidence Motion can only be initiated in LS. [UPSC 2022, 2014]	• Article- 249: RS can authorise parliament to make law on state list subjects by a majority of not less than two-thirds of its members present and voting [UPSC 2016] • Article- 312: RS can authorise parliament to create All India Services common to both centre and State. [UPSC 2012] • Article 67: RS alone can initiate a move for the removal of the Vice-President. • Articles 352, 356 and 360: proclamation issued by the President for imposing emergency at a time when the Lok Sabha has been dissolved or the dissolution of the Lok Sabha takes place within the period allowed for its approval, then the proclamation can remain effective even if it is approved by the Rajya Sabha alone.

PARLIAMENTARY PRIVILEGES

- **Parliamentary privileges:** special rights, immunities and exemptions enjoyed by the two Houses of Parliament, their committees, and their members.
- The Constitution also **extended it to the Attorney General of India**, but the parliamentary privileges **do not extend to the President who is also an integral part of the Parliament**.

Sources of Privileges

- Originally, the **Constitution (Article 105)** mentioned **two privileges**: freedom of speech in Parliament & right of publication of its proceedings.
- Till now parliament has **not made any special law to exhaustively codify all the privileges**.
- **They are based on five sources, namely:** Constitutional provisions; Various laws made by Parliament; Rules of both the Houses; Parliamentary conventions; and Judicial interpretations.

Collective Privileges	Individual Privileges
• Right to publish its reports, debates and proceedings; right to prohibit others from publishing the same. • Hold secret sittings excluding strangers from its proceedings. • Make rules to regulate its own procedure and the conduct of its business and to adjudicate upon such matters. • Punish members as well as outsiders for breach of its privileges or its contempt. • Right to receive immediate information: of the arrest, detention, conviction, imprisonment and release of a member. • Inquiries and orders the attendance of witnesses and sends for relevant papers and records. • Courts are prohibited to inquire into the proceedings of a House or its committees. • No person (either a member or outsider) can be arrested, and no legal process (civil or criminal) can be served within the precincts of the House without the permission of the presiding officer.	• Cannot be arrested during the session of Parliament and 40 days before the beginning and 40 days after the end of a session (applicable only in civil cases and not in criminal cases or preventive detention cases). • Freedom of Speech: No member is liable to any proceedings in any court for anything said or any vote given by him in Parliament or its committees. • Exempted from Jury Service: He/She can refuse to give evidence and appear as a witness in a case pending in a court when Parliament is in session.

Breach of Privileges

- When any individual or authority disregards or attacks any of the privileges, rights and immunities, either of the members individually or of the House in its collective capacity, it is punishable by the House.

Sovereignty of Parliament

- **Sovereignty:** supreme power within the State; **no 'legal' restrictions** on its authority and jurisdiction.
- The doctrine of '**sovereignty of Parliament**' is **associated with the British Parliament** means supreme power in Great Britain lies with the Parliament.
- **Indian Parliament** cannot be regarded as a sovereign body in the similar sense as **there are 'legal' restrictions** on its authority and jurisdiction. [UPSC 2021]

Factors that Limit the Sovereignty of Indian Parliament are

- Written Nature of the Constitution;
- Federal System of Government;
- System of Judicial Review;
- Fundamental Rights.

In this regard, the **Indian Parliament is similar to the American Legislature** (known as Congress). The sovereignty of Congress is legally restricted by the written character of the Constitution, the federal system of government, the system of judicial review and the Bill of Rights.

PARLIAMENTARY AND CABINET COMMITTEES

Constitution of India: Mention these committees at different places, but without making any specific provisions regarding their composition, tenure, functions, etc. They are dealt by the **Rules of two Houses**.

Parliamentary Committee

- Appointed or elected by the house or nominated by Speaker or chairman.
- Works under direction of the speaker/chairman.
- Presents its report to the house or to the speaker/chairman.
- Has a secretariat provided by Lok Sabha/Rajya Sabha.
- The **consultative committees**, which also consist of members of Parliament, are **not parliamentary** committees as they do not fulfil above four conditions.

Classification: Parliamentary committees are of two kinds:-

- **Standing Committees:** Permanent (constituted every year or periodically), work on a continuous basis
- **Ad Hoc Committees:** Temporary and cease to exist on completion of the task assigned to them. These are of two types: Inquiry Committees and Advisory Committees.

Important Parliamentary Committees

- **Estimates Committee:** The origin can be traced to the standing financial committee set up in 1921. The First Estimates Committee in the post-independence era was set up in **1950** on the recommendation of **John Mathai**.
 - **Composition:** **30** members all from LS (**largest committee**). [UPSC 2014]
 - These members are elected every year from amongst its own members, according to the principles of proportional representation by means of a single transferable vote. The Minister cannot be a member.
 - **Function:** To examine the budget and also suggest economies of public expenditure. Suggest alternative policy to ensure economies of public expenditure
- **Public Accounts Committee:** Set up **first in 1921** under GOI Act 1919.
 - **Composition:** **22** = 15(LS) + 7(RS). [UPSC 2013]. Elected for one year on the basis of proportional representation by single transferable vote. **Chairman from Opposition**. The Minister cannot be a member. The chairman of the committee is appointed from amongst its members by the Speaker. Until 1966 - 67, chairman: from the ruling party. Since 1967: invariably from the Opposition.
- **Function:** Examines CAG Audit report and discovers the irregularities. [UPSC 2013]
The committee examines public expenditure not only from legal and formal point of view but also from the point of view of economy, prudence, wisdom and propriety. [UPSC 2013]. **CAG - friend, philosopher, and guide for PAC.**
- **Public Undertakings: Krishna Menon Committee 1964.**
 - **Composition:** Originally it had 15 member (10 LS + 5 RS). However, in 1974, membership raised to 22 (15 LS+7 RS).
 - The Minister cannot be a member. Chairman of the committee is appointed by the **Speaker** from amongst its members who are drawn from the Lok Sabha only.
 - **Function:** To examine reports and accounts of public sector undertakings. Does not involve in the day to day affairs of PSUs. Recommendations are advisory and not binding on the ministries.
- **Departmental Standing Committee (24 Committees):** On the recommendation of the Rules committees of Lok Sabha (1993). In 2004, seven more such committees were set up, thus increasing their number from 17 to 24.
 - **Composition:** **31** = 21(LS) + 10(RS). Members **nominated** by respective presiding officers.
 - **Term:** each standing committee's term is **one year** from the date of its constitution.
 - Minister is not eligible to be nominated as a member of any of the standing committees
 - **Functions:** To examine bills, demand of grants and other matters recommended to them. Out of the 24 standing committees, **8** work under the **Rajya Sabha** and **16** under the **Lok Sabha**.

Other Committees

Committee	Purpose	Composition
Rules Committee	Considers procedural matters and recommends amendments to House rules.	15 members (Lok Sabha, including Speaker) as ex-officio chairman 16 members (Rajya Sabha, including Chairman)
Business Advisory Committee	Regulates the program and timetable of the House, allocating time for legislative business.	15 members (Lok Sabha, including Speaker) 11 members (Rajya Sabha, including Chairman)
General Purposes Committee	Advice on matters concerning the affairs of the House outside other committees' jurisdiction.	Numbers not given but member given
Private Members' Committee	Addresses issues relevant to private members.	15 members (Lok Sabha, nominated by the Speaker); The Deputy Speaker is the chairperson rajya sabha has no such committee.
Committee on Government Assurance	Examines assurances given by the government to the House.	15 members (Lok Sabha), 10 members (Rajya Sabha), nominated by the Speaker or Chairman.
Committee on Papers Laid on the Table	Reviews papers presented in the House for consideration.	15 members (Lok Sabha), 10 members (Rajya Sabha), nominated by the Speaker or Chairman.
Committee on Subordinate Legislation	Oversees rules and regulations made by authorities under legislative powers. [UPSC 2018]	15 members (Lok Sabha) 15 members (Rajya Sabha), nominated by the Speaker or Chairman.

Committee on Welfare of SC and ST	Focuses on issues affecting Scheduled Castes and Scheduled Tribes.	30 members (20 from Lok Sabha, 10 from Rajya Sabha), nominated by the Speaker or Chairman.
Committee on Empowerment of Women	Addresses issues related to women's empowerment.	30 members (20 from Lok Sabha, 10 from Rajya Sabha), nominated by the Speaker.
Joint Committee on Offices of Profit	Examines the implications of offices of profit.	15 members (10 from Lok Sabha, 5 from Rajya Sabha).
Committee on Petitions	Reviews petitions submitted to the House for consideration.	15 members (Lok Sabha), 10 members (Rajya Sabha), nominated by the Speaker or Chairman.
Committee of Privileges	Addresses matters related to the privileges of House members.	15 members (Lok Sabha), 10 members (Rajya Sabha), nominated by the Speaker or Chairman.
Ethics Committee	Oversees ethical conduct and behaviour among members of the House.	No fixed strength; separate for both Houses, nominated by the Speaker or Chairman.
Library Committee	Oversees the functioning and management of the Parliament Library.	9 members (6 from Lok Sabha, 3 from Rajya Sabha); Chairperson appointed by the Speaker.
Joint Committee on Salaries and Allowances of Members	Reviews and recommends salaries and allowances for members of the House.	15 members (10 from Lok Sabha, 5 from Rajya Sabha).

CABINET COMMITTEES

- **Extra constitutional** in emergence. The executive in India works under the **Government of India Transaction of Business Rules, 1961**. These **Rules emerge from Article 77(3) of the Constitution**, which states: "The President shall make rules for the more convenient transaction of the business of the Government of India, and for the allocation among Ministries of the said business."
- Set up by the **Prime Minister (PM)**; aims to reduce the workload of cabinet; varies membership from 3-8; includes minister in charge; includes senior ministers; and takes decisions which are reviewed by cabinet.
- **Two types: Standing committee** or Permanent committee and **Ad Hoc committee** or temporary, for a special purpose. They are mostly headed by the Prime Minister. Sometimes other senior Cabinet ministers also act as their Chairman. But, in case the Prime Minister is a member of a committee, he/she invariably presides over it.

Important Cabinet Committees

Cabinet Committee	Purpose	Composition
Cabinet Committee on Political Affairs	Addresses policy matters related to foreign and domestic affairs.	Key cabinet ministers, including the Prime Minister. (Super-Cabinet)
Cabinet Committee on Economic Affairs	Directs and coordinates governmental activities in the economic sphere.	Ministers responsible for finance, planning, and economic portfolios.
Appointment Committee of the Cabinet	Decides higher-level appointments in central secretariat, public enterprises, banks, and financial institutions.	Prime Minister and Minister of Home Affairs.
Cabinet Committee on Parliamentary Affairs	Oversees the progress of government business in Parliament.	Ministers from various departments, often led by the Minister of Parliamentary Affairs.
Cabinet Committee on Investment and Growth	Promotes investment and fosters economic growth.	Ministers from finance, commerce, and industry sectors.
Cabinet Committee on Employment and Skill Development	Enhances employment opportunities and promotes skill development initiatives.	Ministers from labor, skill development, and education.
Cabinet Committee on Security	Responsible for national security and defence policy issues.	Prime Minister, Defense Minister, and key security officials.
Cabinet Committee on Accommodation	Manages the allocation and maintenance of government accommodation for officials.	Ministers responsible for housing and urban development.

- **Cabinet Secretariat:** The Cabinet Secretariat functions directly under the **Prime Minister**. The administrative head of the Secretariat is the Cabinet Secretary who is also the **ex-officio Chairman of the Civil Services Board**. [UPSC 2015]
- The business allocated to Cabinet Secretariat under Government of India (Allocation of Business) Rules, 1961 includes (i) Secretarial assistance to the Cabinet and Cabinet Committees; and (ii) Rules of Business. Preparation of agenda for Cabinet Meetings & Secretariat assistance to Cabinet Committees. [UPSC 2014]
- **Report on Reorganisation of the Machinery of Central Government (1950):** N. Gopalaswamy Ayyangar recommended grouping ministries and enhancing personnel capabilities in the **O&M Division** but did not propose a minister or secretary for administrative reform. [UPSC 2021]
- **Administrative Reforms Commission (ARC):** The 1st ARC recommended designating a minister and secretary specifically for promoting administrative reform. [UPSC 2021]
- **Establishment of the Department of Personnel:** In 1970, the **Department of Personnel** was established based on ARC recommendations under the **Cabinet Secretariat**. In 1985, it came under the Prime Minister's charge, assisted by a **Minister of State**. [UPSC 2021]



106TH CONSTITUTIONAL AMENDMENT ACT, 2023

Objective

The Nari Shakti Vandan Adhiniyam Act reserves one-third of seats for women in the Lok Sabha, State Assemblies, and the Legislative Assembly of the NCT of Delhi, effective after the next delimitation exercise.

Key Provisions

1. Amended Articles

- **Article 239AA:** Reserves one-third of seats for women in the NCT of Delhi's Legislative Assembly.

2. Inserted Articles

- **Article 330A:** Reserves one-third of Lok Sabha seats for women, including SC/ST seats.
- **Article 332A:** Reserves one-third of State Assembly seats for women, including SC/ST seats.
- **Article 334A:** Provisions take effect after delimitation, with a 15-year sunset clause for review and extension. (UPSC 2024)

Key Features

- **Lok Sabha:** One-third of seats reserved for women, including SC/ST allocations, with periodic rotation among states.
- **State Assemblies:** One-third reservation for women, including in direct elections.
- **NCT of Delhi:** Specific reservation of one-third of seats for women.
- **Review:** Reservation provisions to be reviewed after 70 years; can be extended by Parliament.
- **Rotation:** Seats reserved for women to be periodically rotated after delimitation.